

SNR Constitution

NAME

The name of the Group shall be Seabrook Nature Reserve.

Legal status: Voluntary unincorporated organisation aiming for CIC status.

MISSION STATEMENT

The aims of the Group shall be to act as a not-for-profit group to investigate ways of protecting the land at Princes Parade, Hythe, Kent as a green open space and to work towards enhancing the flora, fauna and biodiversity of the site with the aim of the setting up of a nature reserve on the land in the interests of local residents, visitors to the area, the wildlife and future generations, all of which will support the additional purposes of adapting to and mitigating against climate change.

ADDITIONAL AIMS

1. To protect and enhance the historical significance of the Royal Military Canal and its setting.
2. To protect the unique combination of blue and green infrastructure of this setting.
3. To protect the tranquility and openness of the site.
4. To protect the wildlife corridor.
5. To promote community involvement, community resilience and social cohesion.
6. To protect the dark corridor along the canal.
7. To promote education.
8. To recognise the importance of the site for the wellbeing of local residents and visitors to the area.

DEFINITION OF THE SITE

For the purposes of this constitution, the land at Princes Parade comprises the land behind the play area on the eastern side to the edge of the Hythe Imperial Golf Course on the western side. And from the pavement adjoining the Princes Parade road to the southern edge of the Royal Military Canal, excluding the canal path.



POWERS

To further these aims the Group shall have power to:

1. Obtain, collect and receive money or funds by way of contributions, donations, grants and any other lawful method except taxable trading and apply such funds towards the aims of the Group.
2. Cooperate with and support other groups with similar purposes.
3. Do all such lawful things as will further the aims of the Group.

MEMBERSHIP

Membership is open to anybody who supports the purposes of the group. Members will be required to confirm that they wish to join the Group and that they support its Mission Statement and additional aims and will comply with the code of conduct.

The Management Committee shall have the power to approve or reject applications for membership or to terminate the membership of any member, provided that the member shall have the right to be heard by the committee before a final decision is made.

An annual membership fee may be charged, the amount to be agreed at the AGM each year.

MANAGEMENT

A Management Committee elected annually at the Annual General Meeting (AGM) shall manage the Group. All members of the committee must be members of the Group.

The Management Committee shall consist of a Chair, Secretary, Treasurer, and Membership Secretary and up to 4 additional general committee members.

Any vacancy arising on the Management Committee during the year can be filled by co-option of a member of the Group at a meeting of the Management Committee.

The Management Committee shall meet at least four times each year.

At least 3 Committee members must be present at a committee meeting to be able to make decisions. Where there is a tied vote the chair will have the casting vote.

A proper record of all transactions and meetings shall be kept and members will be kept up to date by email and at general meetings.

The Management Committee will be responsible for the group's finances, data protection, insurance, safeguarding, communications (including with members, on social media and the press) and communication and negotiations with third parties. The Management Committee may appoint subcommittees or working groups and delegate work to them. The Management Committee will draw up policies for safeguarding and data protection and any other policies they think are necessary and appropriate.

The membership committee will not be paid for their services but may claim expenses incurred on behalf of the Group in accordance with the Group's financial policies as drawn up by the Management Committee.

GENERAL MEETINGS

An Annual General Meeting shall be held within 12 months of the date of the adoption of this constitution and each year thereafter.

Notices of the AGM shall be published three weeks beforehand and a report on the Group's financial position for the previous year will be made available at the same time.

A Special General Meeting may be called at any time at the request of the committee, or not less than one quarter of the membership. A notice explaining the place, date, time and reason shall be sent to all members three weeks beforehand.

One third of membership or four members being present, whichever is the greater, shall enable a General Meeting to take place.

Each member at a general meeting will have one vote. Where the vote by members is tied the Chair will have the casting vote.

Proposals to change the constitution must be given in writing to the secretary at least 21 days before a general meeting and approved by a two thirds majority of those present and voting.

ACCOUNTS

The funds of the Group including all donations, contributions and bequests, shall be paid into an account operated by the Management Committee. All payments drawn on the account must be approved by two members of the Management Committee. Therefore any bank account opened on behalf of the group must have the facility for payments to be approved by two people.

The funds belonging to the Group shall be applied only to further the aims of the Group.

A current record of all income, funding and expenditure will be kept.

APPEAL FOR FUNDS

Where an appeal for funds has been made for a specific purpose and either surplus funds remain or the funds were not in the end required for that specific purpose then the Management Committee may return the funds to the original donor(s) on a pro rata basis after direct costs have been deducted. Where the amounts involved are so small that the Management Committee feels it is not practical and/or economic to return the amount to the donor then there will be no obligation to make a repayment to the original donor.

EXPENDITURE

Decisions regarding expenditure may be made either by a majority vote at a meeting of the Management Committee or by a majority of votes of members at a general meeting. In either case the chair will have the casting vote in the event of a tie.

DISSOLUTION

The Group may be dissolved by a resolution passed by a simple two-thirds majority of those present and voting at a General Meeting.

If confirmed, the committee shall distribute any assets remaining after the payment of all bills to relevant charitable group(s) or organisation(s) having aims similar to the Group or some other charitable purpose(s) as the Group may decide by means of a majority vote of the general membership.